

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1054

By: Rosecrants

AS INTRODUCED

An Act relating to the State Board of Education; amending 70 O.S. 2021, Section 3-101, as amended by Section 1, Chapter 182, O.S.L. 2023 (70 O.S. Supp. 2024, Section 3-101), which relates to board member appointments; changing the appointing authority for most members; establishing for-cause removal procedures; eliminating reference to service at the pleasure of the Governor; modifying vacancy procedures; vacating current members; directing initial appointments; providing initial appointment terms; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-101, as amended by Section 1, Chapter 182, O.S.L. 2023 (70 O.S. Supp. 2024, Section 3-101), is amended to read as follows:

Section 3-101. A. The State Board of Education shall consist of seven (7) members. The State Superintendent of Public Instruction shall be a member and the chairperson of the Board. ~~The remaining six members shall be appointed by the Governor by and with the advice and consent of the Senate. Except as otherwise provided for in subsection B of this section, upon assuming office each~~

1 ~~Governor shall appoint one member from each congressional district~~
2 ~~and one member from the state at large~~ Two members shall be
3 appointed by the Speaker of the House of Representatives, two
4 members shall be appointed by the President Pro tempore of the
5 Senate, and two members shall be appointed by the Governor. Each
6 appointment shall be made to take effect on April 2. The term of
7 each appointed member shall be four (4) years. Appointed members
8 shall serve until a successor is appointed. Appointed members shall
9 ~~serve at the pleasure of the Governor~~ only be removed for cause by
10 their appointing authority. Upon the occurrence of a vacancy the
11 same shall be filled ~~by the Governor, subject to confirmation by the~~
12 ~~Senate at the next session of the Legislature~~ in the same manner as
13 the original appointment. The appointment to fill a vacancy shall
14 be made for the unexpired term.

15 B. On the effective date of this act, all appointed positions
16 of the current State Board of Education shall be deemed vacant and
17 the terms of persons serving on the Board shall be deemed
18 terminated. The Speaker of the House of Representatives, the
19 President Pro Tempore of the Senate, and the Governor shall each
20 make two initial appointments pursuant to the provisions of this
21 subsection within thirty (30) days of the effective date of this
22 act, ~~with one member appointed from each congressional district and~~
23 ~~one member appointed from the state at large.~~ The appointments
24 ~~shall be subject to confirmation by the Senate at the next session~~

1 ~~of the Legislature.~~ The terms for members appointed pursuant to
2 this subsection shall terminate on April 2, ~~2015~~ 2029. Thereafter,
3 members shall be appointed as provided for in subsection A of this
4 section.

5 C. No person shall be eligible to be appointed to serve on the
6 Board unless the person has been awarded a high school diploma or
7 certificate of high school equivalency. No person shall be
8 appointed to serve on the Board if the person serves on a board of
9 education of a school district which is supervised by the Board
10 pursuant to Section 3-104 of this title. Any member appointed to
11 the Board shall complete the workshop requirements of a new school
12 board member pursuant to Section 5-110 of this title within thirteen
13 (13) months following or preceding the appointment of the member.
14 Notwithstanding any provision of law to the contrary, the State
15 Department of Education shall not charge any member of the State
16 Board of Education a fee for any workshop provided by the Department
17 for board members pursuant to Section 5-110 of this title and shall
18 not pay a fee to any organization or institution of higher education
19 on behalf of a member of the State Board of Education, or reimburse
20 any member of the Board for a fee paid to any organization or
21 institution of higher education, for attendance at a workshop or
22 courses to satisfy the requirements of Section 5-110 of this title.

1 D. Members of the Board shall receive necessary traveling
2 expenses while in the performance of their duties in accordance with
3 the State Travel Reimbursement Act.

4 SECTION 2. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

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